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Case Number: 22SMCV00209 Hearing Date: August 28, 2026 Dept: N

TENTATIVE RULING

Plaintiff David Carter's Motion to Modify Protective Order is GRANTED IN PART. Plaintiff Carter may use materials designated as "Confidential" in the instant action in the Los Angeles Superior Court Action entitled David Carter v. Zuma Partners F I, LLC, et al., Case No. 20STCV02913 ("Zuma Action"). The modification of the Protective Order in the instant action is restricted to materials identified as relevant to the Zuma Action, but does not authorize public dissemination, business use, or the use of Defendant Shi's personal financial and bank records without written consent or a court order. All materials remain subject to the confidentiality restrictions of this Court's Protective Order unless modified by this Court. The Court in the Zuma Action retains the authority to govern admissibility, trial use, and sealing requirements in its own proceedings.

Plaintiff to give notice.

Plaintiff Carter moves to modify the Protective Order entered in this action, originally dated March 7, 2023, and later modified on January 28, 2025, to permit Carter to use materials designated as "Confidential" in this action in the related action entitled David Carter v. Zuma Partners F I, LLC, et al., Los Angeles Superior Court Case No. 20STCV02913 ("Zuma Action"). Plaintiff argues that the discovery produced in this matter and designated as "Confidential" is relevant to claims and defenses in the Zuma Action, including alleged commingling and misappropriation of funds, breaches of fiduciary duty, damages, tracing, disgorgement, and constructive trust issues. Furthermore, Defendants have improperly mass designated materials as "Confidential," including public materials such as corporate filings and press releases, to preclude their use in litigation. None of the parties will be prejudiced by the modification because it will not expand the parties with access to these materials or increase the risk of disclosure. In fact, the ultimate parties and counsel are the same in both actions and the materials will remain subject to confidential treatment under the Protective Order in this case and a similar order in the Zuma Action. Allowing the use of these discovery materials in the Zuma Action will avoid the expense of obtaining duplicative discovery. Finally, Carter argues that he is not disputing the designation of these documents, he is requesting a narrow modification of the order to allow use of these discovery materials in the Zuma Action while continuing to treat them as confidential.

Defendants oppose the motion. They argue that Plaintiff seeks to import more than 18,000 pages of discovery into a different action, including financial and third-party materials, after a Code of Civil Procedure section 998 offer has been accepted in this action and discovery has been limited in the Zuma Action. The Zuma Action is a six-year-old partnership dispute pending before a different judge, against four entities that are not parties here, three months before that case is tried in front of a jury. Plaintiff is attempting to sidestep all the basic requirements and steps of discovery in the Zuma Action without input from the Zuma court or the interested parties or third parties in the Zuma Action. Furthermore, Defendants produced thousands of pages of confidential documents in this case in reliance on the Protective Order in this specific action. Plaintiff has failed to demonstrate good cause for modification of the Protective Order to use these documents in a different case, given that he could have sought the same discovery in the Zuma Action over the last six years. Defendants also argue that Plaintiff has only offered conclusory statements regarding relevance of these discovery materials in the Zuma Action. They also argue that the Motion is premature because Plaintiff served Paragraph 6 Designation Objections on August 3, 2026, and Defendants have until September 2, 2026, to file a Designation Motion. Finally, the documents transferred from this action

would fall outside the protection of the Zuma Action protective order and the Zuma Action is set for a public jury trial on November 10, 2026. Thus, there is a significant risk of disclosure of these confidential documents. Defendants also argue that Plaintiff has made no attempt to meet and confer prior to filing the instant Motion.

In his Reply, Carter argues that modification for the purpose of avoiding duplication of discovery is highly favored and the need for relevant discovery materials in collateral litigation establishes good cause. Furthermore, these materials are discoverable in the Zuma Action because they are relevant and non-privileged and thus, substantial duplicative discovery will be avoided. Finally, the Motion is not premature because Plaintiff is not challenging the designation of the discovery materials, but rather seeking a narrow modification to use these documents in the Zuma Action regardless of designation. Granting this Motion will avoid the need for a document-by-document review to determine proper designation.

The Court has the authority to modify the protective order in this action. (See Code Civ. Proc., § 2031.060, subd. (b); *Mary R. v. B. & R. Corp.* (1983) 149 Cal.App.3d 308, 317 ("due to its temporary nature, its infringement upon the public right to know...a sealing or confidentiality order in a civil case is always subject to continuing review and modification, if not termination, upon changed circumstances.")) Moreover, the Protective Order in this action contains a provision specifically allowing for modification, even after termination of the proceedings in this action. (Motion, p. 7; Robinson Decl., Ex. 10 at pp. 9-10.) As to Defendants' argument that Plaintiff has failed to meet and confer prior to filing the Motion, Defendants have not demonstrated the necessity to meet and confer for a motion seeking to modify an existing protective order.

The Court finds that Plaintiff has demonstrated relevance of the discovery materials in this action to the issues being litigated in the Zuma Action and identified documents produced in this action that relate to alleged claims for commingling and misappropriation of funds, breaches of fiduciary duty, damages, tracing, disgorgement, and constructive trust issues. Thus, modification of the Protective Order in the instant action would avoid duplication of the discovery proceedings in the Zuma Action, including duplicate subpoenas. Furthermore, in modifying the Protective Order, the Court will not make any determination de-designating the discovery materials as "Confidential," or determining their admissibility in the Zuma Action. The Zuma court will retain full authority over the proceedings before it, including discovery disputes and evidentiary rulings. For these reasons, this Motion is not premature.

The Court finds that Plaintiff has demonstrated that modification of the Protective Order is warranted. To address Defendants' concerns, the Motion is granted with the conditions specified below.

Plaintiff David Carter's Motion to Modify Protective Order is GRANTED IN PART. Plaintiff Carter may use materials designated as "Confidential" in the instant action in the Los Angeles Superior Court Action entitled *David Carter v. Zuma Partners F I, LLC, et al.*, Case No. 20STCV02913 ("Zuma Action"). The modification of the Protective Order in the instant action is restricted to materials identified as relevant to the Zuma Action, but does not authorize public dissemination, business use, or the use of Defendant Shi's personal financial and bank records without written consent or a court order. All materials remain subject to the confidentiality restrictions of this Court's Protective Order unless modified by this Court. The Court in the Zuma Action retains the authority to govern admissibility, trial use, and sealing requirements in its own proceedings.